

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**DECLARATION OF PLAINTIFF
FRANCISCUS DYLAN ROSARIO;
EXHIBIT A: GMAIL E-MAIL THREAD
(MEET-AND-CONFER / SEQUENCING)**

(Code Civ. Proc., § 2015.5; CCP § 1005(b); Cal. Rules of
Court, rule 2.250 et seq.)

MFL-SAC hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Special motion to strike (CCP § 425.16):

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

2 I, Franciscus Dylan Rosario, declare as follows:

- 3 1. I am Plaintiff, in pro per, in the above-captioned action. I have personal knowledge of the mat-
4 ters stated herein, and, if called as a witness, I could and would competently testify thereto.
- 5 2. **Exhibit A** is a printout of the Gmail e-mail **thread** captioned **Re: Rosario v. CSAA, et**
6 **al. — Opposition — CGC-25-631802**. I received the printout, including a message from
7 **Tyler J. O’Connell** (SBN 346673), counsel for Defendant CSAA Insurance Exchange, at
8 toconnell@porterscott.com, on or about the **late morning of April 24, 2026** (Pacific
9 Time) (as timestamped in the printout, approximately **11:46 a.m.**). The **Exhibit A** printout
10 includes, among other items, e-mail I sent to defense counsel on or about **April 23, 2026**. I
11 offer **Exhibit A** to complete the meet-and-confer and correspondence record regarding Plain-
12 tiff’s **Motion for Leave to File a Second Amended Complaint**, set for **April 30, 2026**,
13 **Department 302**, and the **special motion to strike** under CCP § 425.16, set for **May 12,**
14 **2026, Department 302**, in the form shown in **Exhibit A**.
- 15 3. **Exhibit A** does not address Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, JKC3H8
16 v. Colton (2013) 221 Cal.App.4th 468, or Foreman & Clark Corp. v. Fallon (1971)
17 3 Cal.3d 875—the three authorities on which my papers and reply in support of leave to
18 amend rely for the sequencing and supersession question in this case.
- 19 4. I submit this declaration and **Exhibit A** so the Court has a complete meet-and-confer and
20 correspondence record before the **April 30, 2026** hearing on the Motion for Leave to File a
21 Second Amended Complaint.

22 I declare under penalty of perjury under the laws of the State of California that the foregoing is
23 true and correct. Executed on April 27, 2026, at Rohnert Park, California.

Dated: April 27, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

Tyler O'Connell

11:46 AM (1 hour ago)

to me, Monique, Chad, Veronica, Maria 

Mr. Rosario,

None of your cited authorities apply to the current situation where, here, an Anti-SLAPP motion is pending. Your position on this issue—and generally in this litigation—has absolutely zero merit and is obviously designed to waste my time, my clients' resources, and the Court's time. The Court is not going to appreciate your incessant clogging of the docket with meritless "motions," "bench briefs," and "supplemental" filings.

Moreover, your litany of case authorities cited here is completely irrelevant to the status of this litigation and appears to be nothing more than an AI-generated recitation of general principles of amendment, which adds nothing to the analysis of this situation here: where an Anti-SLAPP motion is pending. Put simply, you cannot obtain the relief you seek, here, a motion for leave to amend the pleadings while an Anti-SLAPP motion is pending. Full stop. Please actually read the words of my Opposition to your motion for leave to amend. Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis.

Regards,



Tyler J. O'Connell
Attorney

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, April 23, 2026 7:03 PM

To: Monique Schubert <mschubert@porterscott.com>

Cc: Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Veronica Jackson <vjackson@porterscott.com>; Maria Reyes <mreyes@porterscott.com>

Subject: Re: Rosario v CSAA, et al - Opposition - CGC-25-631802

External email



Dylan Rosario <soltrinox@gmail.com>

12:19 PM (34 minutes ago)

to Tyler, Monique, Chad, Veronica, Maria 

TO,

The FAC still has legs. Even if the judge denies a amendment at this stage , your Anti-SLAPP and § 436 MTS / Demurrer a

deficient on their face.

Anti-SLAPP: Fails at prong 1 because the gravamen is non-petitioning insurer/third-party conduct (Rusheen, Park). Fails at prong 2 because Plaintiff's showing of extra-judicial misconduct clears Soukup's minimal-merit bar. The privilege does not immunize non-communicative commercial conduct (Action Apartment).

§ 436 MTS / Demurrer: Fails because the pleaded theories are cognizable, § 3294 specificity is satisfied (College Hospital, Today's IV), standing arguments are not pleading-stage defects, and collateral estoppel is unsupported by a record of actual-and-necessary litigation (Lucido). Leave to amend is the mandatory backstop (Blank, Goodman).

Dylan Rosario